

Serial No. 5535

Serial No. 5535

Book No. :- 4 Deed No. 7

Deed No 7



बिहार सरकार

अवर निबंधन कार्यालय रोसड़ा

पृष्ठांकन का सारांश

दिनांक 06/06/2014 को **Rajeev Ranjan Priyadarshi** द्वारा यह दस्तावेज निबंधन हेतु उपस्थापित किया गया। इसमें रु० 5000 मुद्रांक शुल्क एवं रु० 2325 निबंधन तथा अन्य शुल्क का भुगतान किया गया। दस्तावेज ग्राह्य पाया गया। जिन लेख्यकारियों ने मेरे समक्ष इसका निष्पादन स्वीकार किया उनके तथा उनके पहचानकर्ता के नाम, फोटो, अंगुलियों के निशान एवं हस्ताक्षर पीछे अंकित हैं। इसे दस्तावेज सं० 7 के रूप में पुस्तक सं० 4 की जिल्द सं० 1 के पृष्ठ सं० 59 से 71 तक CD 1 में आज निबंधित एवं कुल 13 पृष्ठों में संधारित किया गया।

ON-5556
06/06/2014

दिनांक- 06/06/2014

टोकन नं. 5541 / 2014

जय कुमार
निबंधन पदाधिकारी

TRUST DEED

This deed of trust is made on this the 5th June 2014(Fifth June Two Thousand and fourteen) by RAJEEV RANJAN PRIYADARSHI, S/o Sri Ram Narayan Jha, by faith Hindu by occupation- Director of Deoghar Public School, resident of Kalyanpur, Bishanpur, Samastipur, Bihar-848160(which expression shall unless excluded by or repugnant to the subject and context be deemed to include the settlor for the time being of the present and survivors of his successors , heirs, executors and administrators of such survivors of the ONE PART.

AND

1. KAMINI KUMARI D/o Sri Mahesh Jha, by faith- Hindu, by occupation- Head Mistress of Deoghar Public School, Kalyanpur, resident of Kalyanpur, Bishanpur, Samastipur, Bihar-848160.
2. SRI MRITYUNJAY KUMAR JHA, S/o Sri Ram Narayan Jha, by faith- Hindu, by occupation- service, resident of Deoghar, Po. Karnibad, P.S. Deoghar, Dist. Deoghar, State- Jharkhand.

Rajeev Ranjan Priyadarshi
5/6/2014

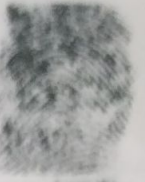
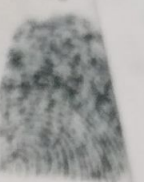
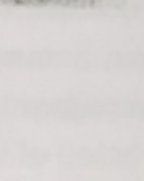
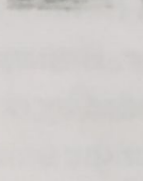
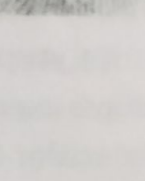
Rajeev Ranjan Priyadarshi
Sub District Registry Office, Rohera

Token Number 5541

Reg. Year 2014

Serial Number 5535

Deed Number 7

PresType	Name	Photo	Thumb	Index	Middle	Ring	Little
Trustee	Amresh Jha						
Sig.	<i>True. 6/6/14 Amresh Jha</i>						
Trustee	Madan Kumar Jha						
Sig.	<i>20 Madan Kumar Jha 6/6/14</i>						
Trustee	Mrityunjay Kumar Jha						
Sig.	<i>20 Mrityunjay Kumar Jha 06/06/2014</i>						
Trustee	Ram Prasad Bahadur						
Sig.	<i>20 Ram Prasad Bahadur 6/6/14</i>						
Trustee	Tripura Jha						
Sig.	<i>स. त्रिपुरा झा 6/6/14</i>						
Trustee	Uday Kumar Jha						
Sig.	<i>20 उदय कुमार झा 6/6/14</i>						
Identified By	Shambhu Kumar Jha						
Sig.	<i>20 शम्भु कुमार झा 6-6-2014</i>						
Presented By	Rajeev Ranjan Priyadarshi						
Sig.	<i>स. राजीव रंजन प्रियदर्शी 6/6/14</i>						

3. SRI AMRESH JHA S/o Late Kushashwar Jha, by faith-Hindu, by occupation- teacher, resident of Kalyanpur, Bishanpur, Samastipur, Bihar.
4. SMT. TRIPURA JHA, D/o Sri Mrityunjay Mishra, by faith-Hindu, by occupation- social worker, resident of Kalyanpur, Bishanpur, Samastipur, Bihar.
5. SRI UDAY KUMAR JHA, S/o Late Surya Narayan Jha, by faith-Hindu, by occupation- agriculture, resident of Kalyanpur, Bishanpur, Samastipur, Bihar.
6. SRI RAM PRASAD BAHADUR, S/o Sri Man Bahadur, by faith-Hindu, by occupation- teacher, resident of Chhatabad, Katrsgarh, Dhanbad, Jharkhand.
7. SRI MADAN KUMAR JHA S/o Late Shiveshwar Jha, by faith-Hindu, by occupation- teacher, resident of Kalyanpur, Bishanpur, Samastipur, Bihar.
8. SMT. KHUSHBOO RANI, D/o Rabindra Jha, by faith-Hindu, by occupation- teacher, resident of Kalyanpur, Bishanpur, Samastipur, Bihar hereinafter jointly called as trustee (which expression shall unless excluded by or repugnant to the subject and context be deemed to include the trustee or trustees for the time being of these of the present and survivors of any of them and their successors , heirs executors and administrator of such survivor of the OTHER PART.

WHEREAS the settler (Author) is desirous of creating and establishing a trust for the purpose of education and training of the boys and girls of the resident of rural area in the circle of State of Bihar.

AND

Rajeev Ranjan Prasad
5/6/2014

Sub District Registry Office, Rosera

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PresType Name
Beneficiary Rajeev Ranjan
Priyadarshi

Photo

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☒ Index

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Sig.

Trustee Khushboo Rani

Sig. So Khushbu Rani

6/6/2014

Trustee Kamini Kumari

Sig. To Kamini Kumari
6/6/14



WHEREAS the settler(Author) of the trust proposes to settle his properties and assets mentioned in the schedule below for the purpose of establishing the said trust.

AND

WHEREAS the trustees have agreed to be invested with the ownership of the properties and assets mentioned in the schedule for giving effect to the wishes of the settler (Author) of the trust.

NOW IT DECLARED BY THE SETTLOR(AUTHOR) OF THE TRUST AS FOLLOWS:

1. This trust will be known as " SHIVPRIYA CO-EDUCATIONAL TRUST".
2. The head of this trust shall be at Shishbanni, Kalyanpur, P.S.- Bhibhutipur, Dist.: Samastipur, State: Bihar-848160 or at such place or places as may be decided by the majority of the trustees from time to time with estimations to the confirmed authorities.
3. In pursuance of the premises , the settlor (Author) of the trustee as beneficial honour of the properties and assets mentioned in the schedule below hereby convey , transfer and grant unto the trust all and every such properties and assets mentioned in the schedule below and to hold the same in trust for the objects of trust as described below to be used and appropriated by the said trustees in order to carry on and fulfill the said object in accordance with the directions of the settlor (Author) of the trust.
4. The objects of the trust are as under:
 - (a) To establish, run and maintain educational and vocational schools for the girls and boys and to develop character and discipline amongst the students.
 - (b) To establish , run and maintain boarding houses for the students.

(c) To engage professors, teachers, instructors, and other helpful persons impart educations to the students in all subjects, physical training, culture, research work, intellectual and other use full persuits.

(d) To accept grants, donations, presents, gifts, and offerings from the parents of the students and other persons and to deal with the same for the purpose of the trust.

(e) To invest dispose off , transfer and otherwise deal with the properties and assets of the trust in such manner as the trustees may deems fit, for the attainment of the object of the trust.

(f) To pay stipends and scholarship to the deserving students on such terms as the trustees deem fit.

(g) To do all other acts and things as may be necessary or conducive to the attainments of the above objects.

(h) To place special emphasis in all activities on unemployed youth, women and children particularly activities to strengthen their capacities develop, their potentials and empower them.

(i) To organize and mobilze women and men for all such activities delineated above and on other relevant issues.

(j) To provide technical and consultancy services in a wide range of areas such as research and documentation, training, project planning, preparation of audio video/Documentary/Feature Film, on relevant issues as also , to self-generate resources , as well as provide for infrastructure wherever possible to co-ordinate activities delineated above.

(k) To publish or to assist in publishing books, booklets, journals, newspapers, pamphlets, folders, leaflets, etc. For promoting rationalism and humanism and to maintain and conduct printing presses , publishing magazines etc. For that purpose.

Rajew Rajan Rajadarsi
5/6/2014

- (l) To organize or assist in organizing seminars, meeting, public lectures, study campus, discussions, conferences, exhibitions and festivals etc. For promoting the main aim of the trust.
- (m) To establish or assist in establishing libraries, study centre, reading rooms, science-centre and museum etc.
- (n) To organize or assist in organizing classes regular or periodical, to conduct examinations, essay competitions, painting, music and drama competitions etc. To grant certificates and diplomas to award scholarships and made arrangements for training workers and students to rationalist and humanist movement.
- (o) To interact with various regional, national and international institutions for attaining the objects of the trust.
- (p) To open schools in different towns for the educations of the people to arrange for their training in spinning , weaving, sewing, embroidery, typing and various other vocational avenues , so that they may stand on their own feet and earn their livelihood.
- (q) To arrange for the cultural development of children and women.
- (r) To open and run institutions and classes for vocational courses such as journalism, advertising public relations, travel and tourism, nursing and hospital management, electronics, compute, library, science, management courses, export management, material management, garments making, health care and beauty culture, shorthand and type writing, sketching, painting, music etc.
- (s) To foster and inculcate the ideas and sense of good citizenship among the children and to make researches to find out means

Rajaw Rajan Rajadani
5/12/2014

for the education of the children so that they may be self dependent in life.

Rajeev Rajan Rajadatta
5/6/2019

- (t) To collect and organize exhibitions.
 - (u) To acquire by purchase, lease in exchange, hire or otherwise any property immovable as well as movable in pursuance of the above mentioned activities in future.
 - (v) To construct, alter and maintain any buildings, movable or immovable properties for the purpose of the trust in future.
 - (w) To subscribe and grant to any local authority or other institutions whose objects are similar to those of the trust.
 - (x) To look after the welfare and well being of the trust and its properties and its members and also to assist and help its members.
5. Accounting year : the accounts of the trust shall be maintained according to English Financial Year i.e. (1st April to 31st March) as per English Calendar.
6. The powers and duties of the trustees and settlor are as under:-
- (a) The trustees will construct a school and boarding house on the land which will be decided and settled by the majority of the trustees.
 - (b) The trustees will defray the expenses for running and maintaining the schools and boarding houses from out of the income of the schools and the boarding houses but if the income of the boarding houses do not suffice for meeting expenses, trustees may spend money out of the portion of the purpose of the trust fund as may be necessary.
 - (c) The trustees will be empowered to borrow money for meeting the expenses for the purposes of the trust on the security of the trust properties and assets.

(d) The trustees will invest the surplus fund in their hands in such securities as they deem fit.

(e) To purchase, acquire, hold, manage, improve, develop, exchange, sale, let out, lease out, mortgage, charge, dispose off, turn to account or others i.e. deal with all kinds of properties movable or immovable for the purpose connected with or conducive to the promotion of the objects of the trust in future.

(f) To construct, alter or keep in repair from time to time building or other immovable properties belonging to the trust in future.

(g) To make, accept, endorse, discount, execute and issue, promissory notes, bills of exchange and other negotiable instruments for the objects of the trust in future.

(h) To invest money of the trust not immediately recognized for the purpose in such securities, stocks, shares, bonds or other investments or grant loans with or without security to or in any consult as may be from time to time determined upon and very same from time to time as may be seen expedient at all the unfettered discretion of the trust.

(i) To amalgamate this trust with any other trust having similar objects or to get other trust having similar objects amalgamated with this trust with the prior sanction of the all the trustees in a meeting.

(j) To open accounts with any bank or banks to operate such accounts and to give instructions to the banks to provide for opening and operation of such account by one or more of the trustees by one or more agents appointed by the trustees.

(k) To adjust settle, compromise, compound refer to arbitration all actions, suits claims, demands and proceedings regarding the trust properties or affairs.

(l) To appoint or make provisions for the appointments of any person (including and or any of the trustees) or administrator or

managing trustee or otherwise for the purpose of the administration of the trust in such manner subject to such rules and regulations as the trustees may prescribe and also to appoint or provide for the appointment of separate trustees to hold any property or any fund or investment subject to the trust of deed in such manner and subject to such rules and regulations as the trustees may decide.

Rajen Rajan Rajadashy
5/6/2014

(m) To appoint committee of management for any of the society or institution or organisation run by the trust the members of such committee of the management need not be the trustees of the trust. The members of such committee of management shall hold office during the pleasure of the trustees of the trust.

(n) It may be noted that during the lifetime of settlor if he will be unable to do all the necessary works for and on behalf of the trust and to preside the trust work as settlor, he will have power to appoint his son as settlor in place of principal settlor.

7. If any of the trustee became bankrupt, insolvent or found guilty by court of an offense involving moral turpitude or remains absent from meeting of the trust for a period of six months or resign from his post the remaining trustees will be empowered to appoint his substitute and drive out the member as trustee.

8. The matter relating to the trust will be decided by the decision of the majority of the trustees in presence of settlor (Author).

9. In case the trust fails for want of its object, or trust having become incapable of performance, the trustees will move the court for applying the trust fund for similar object.

10. The trustees will not be personally liable for any loss to the trust property, unless the trustees are guilty of fraud.

11. As long as the settlor (Author) of the trust shall be alive and be able to act in the matter, he shall be one of the trustees and shall be entitled to preside over all the meetings of the trustees.

12. This trust is a private trust hence the settlor (Author) has got every right and power reserved to revoke the trust and all the properties and assets transferred, conveyed and assured to the trustees will stand retransferred, reconveyed and reassured to the settlor (Author) with full title right powers, privileges and liberties.

13. The trust fund including the purposes and the income therefrom, shall not be utilized for any object except those of the trust hereby created for.

14. A resolution in writing circulated amongst all the trustees and passed by a majority of the trustees shall be as valid and effectual as if it had been passed at a meeting of the trustees duly called and conveyed.

15. Notices of the meeting of the trustees and all communications may be sent to the trustees at their addresses as registered for the time being in the records of the trust.

16. The trustees shall keep or cause to be kept proper books of accounts wherein shall be kept an account of trust receipt and disbursement and shall appoint chartered accountant to be the auditor by the sole auditor once at least every year.

17. For the purpose of stamp duty, the value of trust property and assets is Rs. 1,00,000/-.

IN WITNESSES WHEREOF the parties hereinabove has hereunto set his hand the day and year first above written.

SCHEDULE

Within District Samastipur Sub Registry Office Rosara, Sub Division Rosara, P.S.- Bhibhutipur, Mousa- Kalyanpur Bombaiya, Shishbanni a sum of Rs. 1,00,000/- (One Lakh) as principle amount for establishing the trust.

Sign of the other trustee member

1. RAJEEV RANJAN PRIYADARSHI *Rajeev Ranjan Priyadarshi*
6/6/14

2. KAMINI KUMARI

Kamini Kumari
6/6/14

3. MRITYUNJAY KUMAR JHA

Mrityunjay Kumar Jha
6/6/14

4. AMRESH JHA

Amresh Jha
06/06/14

5. TRIPURA JHA

त्रिपुरा झा
६/६/१४

6. RAM PRASAD BAHADUR

Ram Prasad Bahadur
6/6/14

7. MADAN KUMAR JHA

Madan Kumar Jha
6/6/14

8. UDAY KUMAR JHA

उदय कुमार झा
६/६/१४

9. KHUSHBOO RANI

Khushbu Rani

6/6/14 WITNESSES

Kamini Jha
Kamini Jha
Principal
Deoghar Public School
Kalyanpur Shishbanni

Suman

Manager
Deoghar Public School
Kalyanpur Shishbanni

(9) ॐ श्री गुरुभ्यो नमः
सा ० कल्याणपुर विद्यालय
विद्युतीय LRF 2053568
6-6-2014

(10) ॐ श्री गुरुभ्यो नमः
सा ० कल्याणपुर विद्यालय
विद्युतीय LRF 2053568
6-6-14